Vijayender Sharma vs State & Anr on 13 September, 2023

Author: Amit Sharma

Bench: Amit Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 3299/2022 & CRL.M.(BAIL) 135
VIJAYENDER SHARMA
Through:

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STATE & ANR.

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CORAM:
HON'BLE MR. JUSTICE AMIT SHARMA

OR

% 13.09.2023

1. The present application under Section 439 of the CrPC seeks regular bail in case FIR No. 396/2021 under Sections 406/420/506/120B/174A of the IPC, registered at P.S. Kapashera.

2. The present FIR was registered on a complaint of Dr. Murudla Mishra, wife of late Dr. Amit Singh, wherein she alleged that she and her husband had met the present applicant in Delhi, who had introduced himself as a property dealer by profession. It is alleged that the present applicant lured the complainant to deposit a sum of Rs. 4 crore and 15 lakhs in his property business and assured that the said amount would be returned alongwith 10,000 sq. ft. of land in Kapashera. It is further alleged that Mrityunjay Singh, T.P. Singh, Puran Mal Sharma, Narotam Sharma and others were also involved in the aforesaid conspiracy. It is case of the complainant that in the month of November 2019, her husband had paid a This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 16/09/2023 at 19:10:35 total amount of Rs. 4.15 crores, out of which an amount of Rs. 3.5 crores was paid through RTGS in the account of M/s Sanjog Durobuild Pvt. Ltd. and the remaining Rs. 65 lakhs, was paid in cash to the present applicant. However, the applicant never returned the money, nor did he allot the land as promised by him.

3. As per the status report dated 16.01.2023 authored by Insp. Sunil Kumar, SHO P.S. Kapashera, the following transactions were traced out during the course of the investigation:-

"4. That after taking the amount of Rs. 3.50 crores into the account of alleged company M/s Sanjog Durobuild P. Ltd. in the month of November 2019, it was further credited into the accounts of two companies namely M/s Great Meera Finlease P. Ltd. (Rs. 2 crores on 14.11.19) and M/s Rishikesh Hire Purchase & Leasing Company P. Ltd. (Rs. 1.30 crores on 19.11.20 & 28.11.19). Thereafter, it was immediately same day, Rs. 79 Lacs were transferred into the account of company M/s Multiverse Venture Llp. that was run by the petitioner Vijayender Sharma alone. The company M/s Multiverse Venture Llp was established by petitioner Vijayender Sharma and one Parth Manubhai Patel with a partnership of 50% share each. During investigation, Parth Manubhai Patel stated that he came in contact with one Vijayender Sharma and on his request to run a joint business, they launched a company in the name of M/s Multiverse Venture LIp, wherein he became one of the directors with 50% s hare on 16.08.2017, but on realizing distrustful and wrong intention of his partner Vijayender Sharma, he resigned from the company on 16.11.17. Mastermind of this entire conspiracy was petitioner Vijayender Sharma, who used name of his employees as Director/shareholder in the alleged company but grab the cheated amount himself.

5, That further during investigation, it has come on record that the two companies M/s Great Meera Finlease P. Ltd, and M/s Rishikesh Hire Purchase & Leasing p, Ltd. are run by Mr, Brij Bhushan. During investigation, he stated that he had business relations with the petitioner Vijayender Sharma and all the alleged financial transactions in the above mentioned companies were made on the directions of the petitioner. Mr. Brij Bhushan is silent on the question of receiving huge amount from the alleged company and further transferring Rs. 79 Lacs into the account of This is a digitally signed order.

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4. It is also the case of the prosecution that subsequent to arrest of the present applicant on 01.11.2021, a bail application was filed before the learned Metropolitan Magistrate on the ground of a compromise deed which was entered into between the parties. After considering the same, the present applicant was granted bail on 03.11.2021. As per the said compromise deed dated 02.11.2021, the present applicant issued 4 cheques of Rs. 75.5 lakhs each and one cheque of Rs. 48 lakhs in favour of the complainant. It is pointed out that on presentation, the said cheques were dishonoured. Subsequently, the bail granted to the present applicant was cancelled vide order dated 03.01.2022 and the applicant was declared proclaimed offender vide order dated 11.05.2022 passed by the learned Metropolitan Magistrate, Dwarka. The applicant was thereafter arrested again on 19.05.2022.

5. Learned Senior Counsel appearing on behalf of the applicant submits that the late husband of the present complainant, i.e., late Dr. Amit Singh had filed a complaint with Economic Offences Wing on 09.10.2020, wherein the contentions made by the late husband of the complainant were totally in contrast to the allegations made by the complainant in the present case. It is pointed out that in response to an RTI application No. A- 2173/RTI, Economic Offences Wing, vide communication

dated 26.07.2022 stated that the aforesaid complaint dated 09.10.2020 was closed after preliminary enquiry, due to non-cooperation of the complainant. It was also stated therein that the complainant was intimated about the closure of his complaint vide letter No. 493/R-ACP/Sec-VI/EOW, dated 21.07.2021. It is further pointed out that prior to the demise of the complainant's husband, an This is a digitally signed order.

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6. Learned Senior Counsel appearing on behalf of the applicant submits that so far as the cancellation of bail of the present applicant is concerned, the compromise deed was entered into under coercion, as at that time, the present applicant was in police custody and therefore, the said agreement may be considered a nullity. It is further pointed out that after the cancellation of bail, the present applicant had pursued his legal remedies with respect to grant of bail during which he was declared proclaimed offender. He further draws the attention of the Court to the reply dated 07.07.2023 filed by SI Amit Kumar, Sec.-VI/EOW, before the Court of Ms. Apoorva Rana, learned Metropolitan Magistrate, Dwarka Courts, Delhi, wherein it has been stated that late Dr. Amit Singh never joined the enquiry with regard to his complaint despite notices served through WhatsApp. It was also stated therein that he was contacted telephonically by the ACP, however, he had stated to the latter he is in talks of settlement with the This is a digitally signed order.

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7. Per contra, learned APP for the State, assisted by learned counsel appearing on behalf of the complainant, submits that the complaint as stated by the applicant, which was purportedly filed by

late Dr. Amit Singh was sent to the FSL and signatures therein were found to be forged. It is submitted that as per the chargesheet and investigation, the present applicant is the master mind in the entire fraud and the companies to which the amount was deposited was controlled by him. It is submitted that the applicant had already been declared as a proclaimed offender, he is a flight risk and in view of the above the application for regular bail may be dismissed.

8. Learned APP for the State refutes the contention on behalf of the applicant and submits that no steps were taken during the period between when the bail was cancelled and the applicant was declared as a proclaimed offender.

9. Heard learned counsel for the parties and perused the record.

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10. Chargesheet in the present case has been filed on 16.07.2022 and thereafter supplementary chargesheet has been filed on 29.04.2023 before the Court of competent jurisdiction. It is further pointed out that another supplementary chargesheet will be filed before the learned Trial Court shortly. The evidence in the present chargesheet is documentary in nature. All the documents with respect to the transactions vis-a-vis the educational institutions and the companies in which the money was allegedly transferred have been seized and are either in possession of the Investigating Officer or have been filed alongwith the chargesheet. The applicant claims a defence, which would be a matter of trial and would be determined by the learned Trial Court after considering the evidence and testimonies of witnesses. Out of 5 accused persons, 3 have been granted regular bail while one was chargesheeted without arrest. As per the nominal roll dated 01.09.2023, the applicant has been in judicial custody for 1 year, 3 months and 12 days. Nominal roll also reflects another case, i.e., FIR no. 12/2022, under Sections 419/420/467/468 of the IPC, registered at P.S. Kotwali Nagar, Mau (Uttar Pradesh) is pending against the present applicant. It is pertinent to note that the said FIR was registered by the complainant in the present FIR after bouncing of cheques submitted by the applicant as per the compromise deed. It is further noted that the present applicant has been granted bail in the aforesaid FIR vide order dated 17.01.2023 passed by Hon'ble High Court of Judicature at Allahabad, U.P., in CRIMINAL MISC. BAIL APPLN. No. 51584/2022. Further, so far as the apprehension of the prosecution about the applicant being a flight risk is concerned, the same can be satisfied by imposing necessary conditions to ensure his presence during the course of the trial. Admittedly, the chargesheet in the present FIR has been filed and This is a digitally signed order.

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11. In totality of the facts and circumstances of the case, the present application is allowed. The applicant is directed to be released on bail, on his furnishing a personal bond of Rs. 1,00,000/- with two sureties of like amount, one of which would be the wife of the applicant, to the satisfaction of the learned Trial Court/Link Court, further subject to following conditions:

> i. The applicant shall not leave India without prior permission of the learned Trial Court.
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> ii. The applicant shall intimate the learned Trial Court by way of an affidavit and to the Investigating Officer his permanent address. In case of any change thereafter, the same shall also be intimated by way of an affidavit to the concerned learned Trial Court and the Investigating Officer.
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> iii. The applicant shall appear before the learned Trial Court as and when the matter is taken up for hearing.
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> iv. The applicant is directed to give his mobile number to the Investigating Officer and keep it operational at all times. v. The applicant shall not, directly or indirectly, tamper with evidence or try to influence the witness in any manner. vi. The applicant shall appear before the Investigating Officer on every Saturday at 5 PM and shall be released by 6 PM.

12. The application is allowed and disposed of accordingly.

13. Pending application, if any, also stand disposed of.

14. Needless to state that nothing stated hereinabove is an opinion on the This is a digitally signed order.

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15. Copy of the order be sent to the concerned Jail Superintendent for necessary information and compliance.

16. Order be uploaded on the website of this court forthwith.

AMIT SHARMA, J SEPTEMBER 13, 2023/sn This is a digitally signed order.

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